

26STLC03135 26STLC03135

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STLC03135 Hearing Date: September 22, 2026 Dept: 26

TENTATIVE RULING:

The Court orders the parties to appear at the hearing on the Motion to discuss the discovery requests.

Analysis:

On May 7, 2026, Plaintiff Captain Pallets, Inc. ("Plaintiff") filed the Complaint in this action against Defendants Abbyson Living LLC ("Defendant Abbyson") and Doddy Rafieha ("Defendant Rafieha"). The Complaint alleges causes of action for breach of contract and common counts against both Defendants. No proof of service of the Complaint and Summons was filed as to either Defendant. Defendant Rafieha filed a Demurrer on June 25, 2026. On July 27, 2026, the Court overruled Defendant Rafieha's Demurrer to the Complaint, which argued that the causes of action against him were insufficient on account of inadequate alter ego allegations. (Minute Order, 07/27/26.) Defendant Rafieha filed an Answer to the Complaint on August 17, 2026.

On August 26, 2026, Plaintiff filed the instant Motion to Compel Further Responses and Production of Documents from Defendant Doddy Rafieha Regarding Plaintiff's Requests for Production, Set One, Nos. 1-10; Request for Monetary Sanctions. Defendant Rafieha filed an opposition on September 9, 2026. To date, Plaintiff has not filed a proof of service of the Complaint and Summons as to Defendant Abbyson Living, LLC, nor has that

defendant filed any response to the Complaint.

Discussion

Procedural Requirements

Notice of the

motion to compel further must be given “within 45 days of service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing,” otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2030.300, subd. (c).) This time is extended based on the manner of service; service by electronic mail extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Defendant Rafieha served responses to the Request for Production of Documents, Set One, on August 7, 2026. (Motion, Sayer Decl., ¶¶ 3 and Exh. 2.) The instant Motion was timely filed and served 19 days later.

Second, the Motion must

be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2030.300, subd. (b)(1).) Plaintiff’s counsel sent an 18-page meet and confer letter to defense counsel on August 11, 2026, asking Defendant Rafieha to serve amended responses and produce documents by August 19, 2026, with respect to RFPs 1-10. (Motion, Sayer Decl., Exh. 3.) Defense counsel sent a two-page written response on August 19, 2026 briefly rejecting Plaintiff’s arguments, and stating in closing that defense counsel remained available for discussion. (Id. at Sayer Decl., Exh. 4.) The attorneys did not meet and confer further before Plaintiff filed the instant Motion one week later. This was not a sufficient meet-and-confer effort. “[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439; Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.) Initiating a meet-and-confer in writing is fine, but a follow-up conversation must be held. (Code Civ. Proc., § 2016.040(a).) Motion practice after a single round of emails is not enough.

This concern is

especially pertinent here because the primary basis for several of the objections to the RFPs at issue is the objection that the wrong document name was used: e.g., “bylaws”, “Articles of Incorporation”, and “stock certificates” and the

request for Annual Statements of Information that did not identify the entity at issue. (RFPs 1-2, 4-5.) This kind of dispute should be remedied through meet-and-confer efforts.

The Court may nonetheless address the Motion to Compel.

Before entering an order on the Motion, the Court orders the parties to appear at the hearing on the Motion to discuss the discovery requests.